



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 17, 2021

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202004300 regarding Police Officer Ali Hassan, Tax No. [REDACTED] (DADS No. 2021-23024)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter in its entirety and determined that the recommended penalty of a Schedule "B" Command Discipline is not warranted.

Police Officer Hassan was alleged to have used improper force against two individuals by utilizing a baton during a protest, striking one individual in the thigh. It should be noted that one of the individuals has not been identified and thus did not provide further context or information. The sole identified individual was interviewed and stated that he was not injured and could not recall which thigh was actually struck with the baton.

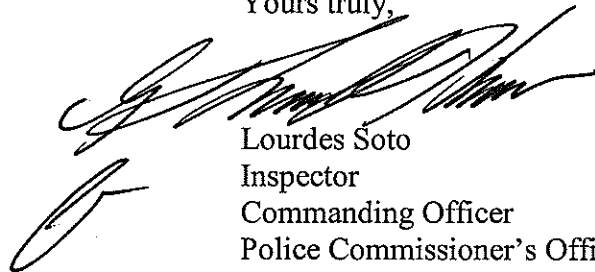
Police Officer Hassan stated that projectiles were being thrown at the officers and that the police van in which Police Officer Hassan was an occupant was struck by a projectile shattering its window. During the chaotic incident, Police Officer Hassan utilized his baton to move protestors off of the street, including the two subject individuals. It is apparent from the available video evidence that Police Officer Hassan did not intend to strike anyone with the baton. It should be noted that a thorough review of this incident was also conducted independently by the Department which found that Police Officer Hassan did not use unnecessary force when interacting with the two individuals. Thus, the Police Commissioner has determined that Police Officer Hassan will receive no disciplinary action for the use of the baton.

The CCRB also substantiated a misleading statement allegation against Police Officer Hassan for initially stating that he did not use his baton during the incident. After being shown video evidence during the same CCRB interview, Police Officer Hassan immediately corrected his statement to properly account for his actions. The Police Commissioner reviewed the statements made by Police Officer Hassan and does not agree that Police Officer Hassan attempted to intentionally mislead the CCRB investigators. Since the statement was not intentionally made to deceive the CCRB investigators, the Police Commissioner has determined that Police Officer Hassan will receive no disciplinary action for the alleged misleading statement.

Therefore, Police Officer Hassan will receive no disciplinary action for the alleged violation of Patrol Guide Procedures 212-01 (Force Guidelines), 221-02 (Use of Force), 212-123 (Use of Body-worn Cameras), and Administrative Guide Procedure 304-10 (False or Misleading Statements).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', is written over the typed name and title.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office